

24STCV27313 24STCV27313

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-08-25

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Case Number: 24STCV27313 Hearing Date: August 25, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

SOUTHERN CALIFORNIA GAS COMPANY,

vs.

JAMES A. KAY, JR.

Case No.: 24STCV27313

Hearing Date: August 25, 2026

Cross-Defendant

Southern California Gas Company's motion for summary adjudication of the 5th and 6th causes of action in Cross-Complainant James A. Kay, Jr.'s Cross-Complaint is denied.

Moving Defendants

James A. Kay, Jr.'s and Communications Relay, Corp.'s motion for summary adjudication of the 1st, 2nd, and 3rd causes of action in Plaintiff Southern California Gas Company's First Amended Complaint is denied.

Cross-Defendant/Plaintiff Southern

California Gas Company ("SoCalGas") ("Cross-Defendant/Plaintiff") moves for summary adjudication of the 5th and 6th causes of action in Cross-Complainant

James A. Kay, Jr.'s ("Kay") ("Cross-Complainant/Defendant") cross-complaint ("XC"). (Notice of MSA XC; C.C.P. §437c.)

Moving

Defendants Kay and Communications Relay, Corp. ("CR Corp.") (collectively, "Moving Defendants") move for summary adjudication of Plaintiff's 1st, 2nd, and 3rd causes of action in Plaintiff's first amended complaint ("FAC"). (Notice of MSA FAC, pg. ii; C.C.P. §437c.) Moving Defendants move on the basis that that

there are no triable issues of material fact concerning Moving Defendants' continuing liability on a license agreement that expired in 2020 or with respect to Moving Defendants' occupancy of the Property which had ceased long before the expiration of that agreement.

(Notice of MSA FAC, pg. ii.)

CRC

Violations

CRC, Rule 3.1350(d)

provides that when multiple causes of action, issues or defenses are presented for summary adjudication in one motion, each cause of action, issue or defense to which the motion is directed must have a separate section heading indicating the issue number, cause of action, and specifying the issue. The headings must be followed by two columns. (CRC, Rule 3.1350(d); see CRC, Rule 3.1350(h) [illustrating format for separate statements in a motion for summary adjudication].) Failure to comply with the requirements for filing a separate statement may in the trial judge's discretion constitute a sufficient ground for denial of the motion. (C.C.P. §437c(b)(1).)

All of the separate

statements submitted in support of the parties' MSAs are in violation of CRC, Rule 3.1350(h) because they fail to follow the format required for a motion for summary adjudication. The separate statements filed are formatted exclusively for motions for summary judgment. Accordingly, Cross-Defendant's and Defendants' MSAs are denied.

Conclusion

Cross-Defendant's

motion for summary adjudication of the 5th and 6th causes of action in
Cross-Complainants' XC is denied.

Defendants'

motion for summary adjudication of the 1st, 2nd, and 3rd causes of action in Plaintiff's
FAC is denied.

Moving

Parties to give notice.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior

Court